

HOUSE No. 1716

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting court ordered visitation rights to any persons convicted of criminal offenses against a minor.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1716

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1716) of Colleen M. Garry for legislation to prohibit court ordered visitation rights to persons convicted of criminal offenses against minors. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1516 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting court ordered visitation rights to any persons convicted of criminal offenses against a minor.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 28 of Chapter 208 of the General Laws, as appearing in the 2014
2 Official Edition, is hereby amended by adding the following paragraph:— No court shall make
3 an order providing unsupervised visitation rights to a parent who has been convicted of sexual
4 abuse and/or other crimes against children including but not limited to one or more of the
5 following: Ch. 265, sections 13B, 13H, 13J, 22, 22A, 23, 24, 24B, 26, 26A, 27A, Chapter 272,
6 sections 1, 2, 4, 4A, 4B, 16, 17, 28, 29A, 29B, 35, 35A, unless such child is of suitable age and
7 assents to such order and a guardian ad litem finds the visitation is in the best interest of the
8 child.

SECTION 2. Section 37 of Chapter 209 of the General Laws, as appearing in the 2014 Official Edition, is hereby amended by adding the following paragraph:— No court shall make an order providing unsupervised visitation rights to a parent who has been convicted of sexual abuse and/or other crimes against children including but not limited to one or more of the following: Ch. 265, sections 13B, 13H, 13J, 22, 22A, 23, 24, 24B, 26, 26A, 27A, Chapter 272, sections 1, 2, 4, 4A, 4B, 16, 17, 28, 29A, 29B, 35, 35A, unless such child is of suitable age and assents to such order and a guardian ad litem finds the visitation is in the best interest of the child.